

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Evelis Otero	Team: Intake	CCRB Case #: 201404119	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/29/2014 1:35 PM	Location of Incident: 696 Fordham Road, NYC Traffic Violation Bureau, room number 3	Precinct: 48	18 Mo. SOL 10/29/2015	EO SOL 10/29/2015	
Date/Time CV Reported Tue, 04/29/2014 2:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/29/2014 2:12 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Harrington Marshall	01725	907657	HWY 01

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Victor Perez	17605	928955	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A.POM Harrington Marshall	Discourtesy: PO Harrington Marshall spoke rudely to § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On April 29, 2014, at approximately 1:35 p.m., § 87(2)(b) was at the NYC Traffic Violation Bureau, located at 696 Fordham Road in the Bronx, awaiting a hearing for a summons he received prior to this incident. Approximately three hearings took place before § 87(2)(b)'s hearing, all of which were adjudicated in favor of the civilians. PO Harrington Marshall, who was present in the trial room, allegedly became frustrated and told the judge, § 87(2)(b) "I don't believe this shit. What the fuck is going on?" (Allegation A) § 87(2)(b) then instructed PO Marshall to calm down and he complied. No summons or arrest resulted from this incident (complaint encl. B-1 – B-2 and CCRB statement encl. C-2 – C-5).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. According to the NYC Comptroller's Office, no Notice of Claim has been filed regarding this incident, as of August 29, 2014, which is more than a month after the expiration of the 90-day filing deadline (encl. H-10). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two CCRB complaints prior to this incident, § 87(2)(b)
§ 87(2)(g)
- § 87(2)(b) has not filed a CCRB complaint prior to this incident (encl. A-3).
- PO Marshall has been a member of the NYPD for 20 years and there are no substantiated CCRB allegations against him (encl. A-1).

Finding and Recommendations

Explanation of Subject Officer Identification

PO Marshall acknowledged interacting with § 87(2)(b) § 87(2)(g)

Allegation A – Discourtesy: PO Harrington Marshall spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Marshall told Traffic Court Judge § 87(2)(b) "I don't believe this shit. What the fuck is going on?" It is undisputed that PO Marshall interacted with § 87(2)(b) during several hearings on the day of the incident. PO Marshall denied the allegation but acknowledged that at some point during his interaction with § 87(2)(b) the conversation became "heated" and that they both raised their voices (encl. D-9 – D-14).

PO Victor Perez was present at the time of the incident. Additionally, § 87(2)(b) a representative at the NYS Department of Motor Vehicles (NYS DMV), was seated by § 87(2)(b) at the time of incident. However, neither PO Perez nor § 87(2)(b) could recall this incident (encl. D-1 – D-8).

§ 87(2)(b) failed to cooperate with the investigation. The NYS DMV was unable to locate any audio recordings of the court hearings in which PO Marshall testified on the day of the incident (encl. H-12).

§ 87(2)(g)

§ 87(2)(b). When § 87(2)(b) filed this complaint, he stated that

PO Marshall told § 87(2)(b) “Fuck you. I am going to talk to your supervisor. I'm tired of this shit.” However, in his initial phone statement, § 87(2)(b) claimed that PO Marshall said, “You fucking guys.”

§ 87(2)(g)

Team: Strike Team

Investigator:	<u>Evelis Otero</u>	<u>12/31/2014</u>
	Signature	Print
		Date

Supervisor:		
	Title/Signature	Print
		Date

Reviewer:		
	Title/Signature	Print
		Date

Reviewer:		
	Title/Signature	Print
		Date